

Sameer Ahamad v. Managing Director, Purvanchal Electricity Vitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 4 February 2021 · Writ-C No. 3418 of 2021 · **Writ disposed; representation in six weeks; no disconnection meantime**

HEADNOTE

The Allahabad High Court disposed of a writ seeking a mandamus against disconnection of an existing connection during a pending family occupancy suit. On the licensee's submission that the consumer could furnish an indemnity and complete other formalities under the U.P. Electricity Supply Code, 2005, the Court directed respondent no. 4 to decide the 18 January 2021 representation, or a fresh one, by a reasoned speaking order within six weeks in accordance with law, and directed that the connection shall not be disconnected until that decision.

FACTUAL SUMMARY

After partition of House No. 109/138, Neem Sarai, Prayagraj, Sameer Ahamad built on his share and obtained a connection. Civil Suit No. 233 of 2020 among co-sharers is pending. On a 7 January 2021 complaint, Purvanchal Vidyut Vitran Nigam staff approached him for disconnection; a 16 January 2021 report said supply would be cut if the grant was irregular. He sought a mandamus against disconnection without a co-sharers' NOC and disposal of his 18 January 2021 representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

indemnity-disputed-occupancy-disconnection-stay

HOLDING

A writ seeking a mandamus against disconnection of an existing connection amid a pending family occupancy dispute may be disposed of by directing the licensee to consider and decide the consumer's representation by a reasoned speaking order in accordance with law, the licensee having pointed to indemnity and other Supply Code formalities, and by restraining disconnection until that decision. ¶ 1

FLAG Order does not number clause 4.4 or Annexure 4.2; indemnity was the licensee's submission.

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The licensee invited disposal on indemnity and other Supply Code formalities for the occupancy dispute. The Court did not grant a permanent mandamus against disconnection; it directed a reasoned decision on the pending representation in accordance with law and stayed disconnection until then. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION WAS IRREGULARLY GRANTED, AND WHETHER A CO-SHARERS' NOC IS REQUIRED TO CONTINUE SUPPLY

The 16 January 2021 report and the petitioner's title were not examined; the pending civil suit was only noticed. ¶ 1